THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-I), CHANDIGARH

CA (CAA) No.31/Chd/Hry/2024
(1st Motion)

Under Sections 230 to 232 read with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF ARRANGEMENT:

FREECHARGE PAYMENT TECHNOLOGIES PRIVATE LIMITED
A Company Registered under the Companies Act, 2013
Having its Registered Office At
11th Floor, Tower -C, DLF Cyber Greens, DLF Cyber City
Phase-3, DLF QE, Gurgaon, Haryana
Pin Code-122002
CIN: U7414HR2015PTC14857 …Demerged Company/ Applicant Company 1

AND

FREECHARGE BUSINESS AND TECHNOLOGY SERVICES LIMITED
A Company Registered under the Companies Act, 2013
Having its Registered Office At
11th Floor, Tower -C, DLF Cyber Greens, DLF Cyber City
Phase-3, DLF QE, Gurgaon, Haryana
Pin Code-122002
CIN: U82990HR2024PLC119900

…Resulting Company/ Applicant Company No. 2

Order delivered on: 23.04.2025

Coram: HON'BLE SH. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE SH. SHISHIR AGARWAL, MEMBER (TECHNICAL)

Present: -

For the Applicant : Ms. Munisha Gandhi, Senior Advocate
Mr. Vivek Sethi, Advocate
Ms. Salina Chalana, Advocate
Mr. Rohit Jolly, Advocate

Per: Sh. Harnam Singh Thakur, Member (Judicial)
Sh. Shishir Agarwal, Member (Technical)

ORDER

This is a Joint First Motion Application filed by the Applicant Companies namely; **FREECHARGE PAYMENT TECHNOLOGIES PRIVATE LIMITED (FPTPL)** (hereinafter referred to as the or "Applicant Company No.1 or Demerged Company"), **FREECHARGE BUSINESS AND TECHNOLOGY SERVICES LIMITED (FBTSL)** (hereinafter referred to as the "Applicant Company No.2 or Resulting Company") under the provisions of Section 230 to 232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (hereinafter referred as the "Rules").

2. Under the scheme, the business undertaking comprising of Business Correspondent Activities and Technology Service Provider Activities of the Demerged Company will be transferred to Resulting Company.

3. The Applicant Companies have prayed for dispensation with the requirement of convening the meetings of the Equity Shareholders, secured and unsecured creditors of the Applicant Companies and dispense with the requirement of issue and publication of notices for the same. A copy of the Scheme has been annexed as Annexure A-1 of the application.

4. It is submitted that the registered offices of the Applicant Companies are situated in Haryana, therefore, both the Applicant companies are under the territorial jurisdiction of this Bench.

5. The Applicant Company No.1 is engaged in the business of providing safe and seamless payment solutions including providing facilities to recharge online prepaid, postpaid mobile and landline bill payment, DTH connections and data cards etc. through its website and mobile application namely, 'Freecharge'. The

Demerged Company is also engaged in facilitating merchant payments both for offline and online merchants through Payment Aggregation and Payment Gateway services. Additionally, the Demerged Company also provides Business Correspondent and Technology Services to Axis Bank, the Holding Company of the Demerged Company. The Resulting Company has been formed for the purpose of carrying on the activity of Business Correspondent and Technology Service Provider for Axis Bank Ltd. and other activities in compliance with the Master Circulars/Regulators/Directions of the Reserve Bank of India issued from time to time. The Resulting Company is wholly owned subsidiary of Axis Bank Ltd.

6. The Share Capital of the Demerged Company/Applicant Company No. 1 as per its Audited financial results dated 31.03.2024 is as under:

Share Capital	**Amount (In Rs.)**
Authorized Share Capital	
4,00,60,10,000 equity shares of Rs. 10/- each	40,06,01,00,000/-
Issued, Subscribed and Paid Up Share Capital	
1,76,36,97,829 equity shares of Rs. 10/- each	17,63,69,78,290/-

The share capital of the Resulting Company/Applicant Company No. 2 as per its Provisional Balance Sheet dated 30.06.2024 is as under:

Share Capital	**Amount (In Rs.)**
Authorized Share Capital	
10,00,00,000 equity shares of Rs. 10/- each	10,00,00,00,000
Issued, Subscribed and Paid Up Share Capital	
4, 00, 00,000 equity shares of Rs. 10/- each.	40,00,00,000

7. The rationale of the Scheme is provided in Part-B of Scheme of Demerger which is attached as Annexure A-1 of the application.

8. It is stated that the Board of Directors of Applicant Companies in their respective meetings held on 17.07.2024 have considered and unanimously approved the Scheme of Demerger subject to sanctioning of the same by this Tribunal. The copies of the Board Resolutions of Applicant Companies are attached as Annexure A-6 and Annexure A-12 of the application.

9. The appointed date of the Scheme is 01.07.2024 as mentioned in Part-C Clause 1.3 of Scheme of Demerger which is attached as Annexure A-1 of the application.

10. It is stated that Applicant Company No.1 has filed the audited financial statements as on 31.03.2024, Provisional Balance Sheets as on 30.06.2024 and Financial Statement reflecting pre & post demerger status of Demerged Company which are attached as Annexure A-3, A-4 and A-5 respectively of the application. Further, it is stated that the Applicant Company No.2 has filed the Provisional Balance Sheets as on 30.06.2024 and and Financial Statement reflecting pre & post demerger status of Demerged Company which are attached as Annexure A-11 of the application.

11. It is further submitted that Applicant Companies have filed certificate dated 19.07.2024 duly certified by Statutory Auditor of Applicant Companies, certifying that the Scheme is in compliance with the Accounting Standards under Section 133 of the Act and the same are attached as Annexure A-17 and A18 of the application.

12. It is further submitted by the Applicant Company No.1 and Applicant Company No.2 that the Valuation Report dated 11.07.2024 is submitted by

Kirtane and Pandit LLP, Chartered Accountants bearing CIN No: U74140HR2015PTC114857 is attached as Annexure A-16 of the application. The Share Exchange Ratio as per the conclusion of the valuation report is given below:-

> *"Demerger of Demerged undertaking into FBTSL at 100 equity shares of FBTSL of INR 10 each for each 283 equity shares of FPTPL of INR 10 each".*

13. It is submitted by the learned counsel that the Scheme also takes care of the interests of the staff and employees of the Applicant Companies, by virtue of Clause 14 Part C of the Scheme (Annexure A-1 of the application).

14. It is submitted that the Applicant Companies are not required to serve notice of petition on the Competition Commission of India (CCI) and the requirement of obtaining the approval from the CCI under sub-clause (2) of Section 6 of the Competition Act, 2002 is exempted vide Entry 9 to Schedule 1 in terms of Regulation 4 of the Competition Commission of India (Procedure in regard to the transaction of business relation to combinations) Regulations 2011. Further, it is submitted that none of the Company is registered under the Monopolies and Restrictive Trade Practices Act and no investigation is pending against either of these Companies under Sections 206 to 229 of Chapter XIV of the Companies Act 2013. Moreover, the proposed Scheme does not envisage any Corporate Debt Restructuring.

15. It is respectfully submitted that following Legal Proceedings are pending before various commissions in respect of the Applicant Companies, the list of which is enclosed herein:

Sr. No.	Date of commencement of Legal Proceedings	Particulars of the Case	Adjudicating Authority
1.	30.01.2023	***Mohammed Iftekhar vs. Axis Bank and Others CC/22/2023***	District Consumer Commission, Delhi
2.	03.09.2020	***Mr. Rachit Aggarwal vs. Freecharge,in and Ors. CC/125/2020***	District Consumer Commission, Gautam Budh Nagar, Greater Noida, UP
3.	18.06.2023	***Ramesh Kumar Dehal Vs. Punjab National Bank and Ors.*** ***Consumer Complaint No. 192/2021***	District Consumer Commission. Hamirpur Himachal Pradesh
4.	20.05.2023	***Rajesh Kumar v HDFC Bank and Ors.*** ***Civil Suit No 226/2023*** Demerged Company being Defendant No. 5	Civil Suit No 226/2023 before senior civil judge, Karkardooma court complex (North-East), Delhi.
5.	11.05.2023	***Syed Shafquatullha V Freecharge Payment Technologies Pvt. Ltd. CC/222/2023***	District Consumer Commission. Patna Bihar
6.	15.03.2024	***Avinash Kumar Singh vs. ICICI Bank and Ors. CC/92/2024***	District Consumer Commission, Jhansi
7.	17.11.2023	***Mr. N. Javed Nishath vs. HDFC Bank and Another CC/403/2023***	District Consumer Commission, Coimbatore
8.	16.08.2022	***Freecharge Payment Technologies Pvt. Ltd. versus Collector of Stamps, Government of NCT of Delhi WP (C) 11910 of 2022***	Delhi High Court
9.	22.12.2022	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***OMP (ENF.) (COMM.) 250/2022***	Delhi High Court
10.	23.12.2022	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 52858 of 2022***	Judicial Magistrate, Gurugram
11.	29.11.2022	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 49719 of 2022***	Judicial Magistrate, Gurugram
12.	03-02-2023	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 3604 of 2023***	Judicial Magistrate, Gurugram
13.	19-04-2023	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 73048 of 2023***	Judicial Magistrate, Gurugram
14.	25-05-2023	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 76535 of 2023***	Judicial Magistrate, Gurugram
15.	06-07-2023	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 81151 of 2023***	Judicial Magistrate, Gurugram
16.	08-08-2023	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 86085 of 2023***	Judicial Magistrate, Gurugram
17.	13-09-2023	***Freecharge Payment Technologies Pvt. Ltd. Vs. Frederica Marketing Pvt. Ltd.*** ***NACT No. 89236 of 2023***	Judicial Magistrate, Gurugram

18.	15.03.2024	***Sudheer J.G v. Central Bank & Ors. CC/28/2024***	***District Consumer Commission, Chigmagluru, Karnataka***
19.	09-05-2024	***Sumit Kumar v. State of Bihar & Ors. CR. WJC-998/2024***	***High Court of Judicature at Patna***

It is provided in Clause 13 Part C of the Scheme that the Resulting Company undertakes to have all legal or other proceedings initiated by or against the Demerged Company in relation to Demerged Undertaking as specified in Clause 13.1 of the Scheme transferred to its name and same will be continued, prosecuted and enforced by or against the Resulting Company to the exclusion of the Demerged Company in relation to the Demerged Undertaking (Annexure A-1 of the application). Further, it is submitted that after effective date, the Resulting Company shall or may, if required, will initiate or continue any legal proceeding in relation to Demerged Company with respect to Demerged Undertaking.

16. **The Applicant Companies have furnished the following documents:-**

i. Proposed Scheme of Arrangement (Annexure A-1 of the application).

ii. The Memorandum and Articles of Association of the Applicant Companies (Annexure A-2, A10 respectively of the application).

iii. List of Equity Shareholders as on 24.06.2024 of the Applicant Company No. 1 duly certified by Nikunj Agrawal and Co., Chartered Accountant alongwith with their consent affidavits (Annexure A-7 of the application).

iv. List of Equity Shareholders of the Applicant Company No. 2 as on 24.06.2024 duly certified by Nikunj Agrawal and Co., Chartered Accountants along with their consent affidavits (Annexure A-13 of the application).

v. List of Secured and Unsecured Creditors of the Applicant Company No.1 as on 30.06.2024 duly certified by Nikunj Agrawal and Co., Chartered Accountants along with their consent affidavits (Annexure-A-8 of the application)

vi. List of NIL Secured and Unsecured Creditor of the Applicant Company No.2 as on 30.06.2024 duly certified by Nikunj Agrawal and Co., Chartered Accountants (Annexure- A-14 of the application).

vii. Certificate of Statutory Auditors of Applicant Companies to the effect that the Accounting treatment proposed in the Scheme is in conformity with Section 133 of the Companies Act, 2013 (Annexure A-17 and A18 of the application).

viii. Valuation Report dated 11.07.2024 (Annexure A-16 of the application).

17. An additional affidavit has been filed on behalf of resulting company for compliance of order dated 23.08.2024 of this Tribunal vide Dairy No. 02453/4 dated 03.09.2024 wherein it is deposed that Applicant Company No.2 has neither Secured Creditor nor Unsecured Creditor as on 30.06.2024. It is further deposed that the provisional Balance Sheet of resulting company reflects current liabilities under head trade payable and other current liabilities. It is submitted that the amounts are estimated on provisional basis and same have not become due or payable. Further, it is submitted that there has been transfer of shares by two nominee shareholders to new nominee shareholders of Resulting Company during the period between 30.06.2024 and 23.08.2024.

18. An affidavit has been filed on behalf of demerged company for compliance of order dated 23.08.2024 of this Tribunal vide Dairy No. 02453/5 dated 03.09.2024 wherein it is stated that amount due to unsecured creditors as per list

placed amounts to Rs. 9,47,897/- in aggregate. This amount is part of Rs. 777.38 lakhs reflected in provisional Balance Sheet under trade payables has not become due yet. The demerged company has received invoices against the amount of Rs. 9.48 lakhs and has acknowledged liability to pay the same, whereas as against an amount of Rs. 767.90 lakhs the Demerged Company has not yet received invoices hence has not yet booked its liability to pay but shown amount in books on provisional basis, in terms of applicable Indian Accounting Standards 37. The actual liability towards unsecured creditors stand as Rs. 9,47,897/- as on 30.06.2024 and amount of Rs. 8,50,001/- has been paid between period 30.06.2024 and 23.08.2024. Further, it is submitted that amounts reflected in the Provisional Balance Sheet (at page no. 188 of Petition), under the categories of Other Payables, Lease Liabilities, Other Financial Liabilities and Other Current Liabilities, the same are either provisioned amounts or statutory payables or those payable to employees or those involved in the business as part of payment aggregator services and not as consideration or liability to vendor, and they do not require being mentioned in the List of Creditors (Annexure A-8). Further, it is stated that out of the 16 Unsecured Creditor of Demerged Company/Applicant Company No. 1 as per Annexure A-8 (Page No. 245 of Petition) the payment of dues of 4 number of unsecured creditors representing dues of Rs. 8,50,001/- have already been made, leaving 12 unsecured creditors holding dues of Rs. 97,896/- only. These payments have been made between 30.06.2024 and 23.08.2024. The List of the 4 Creditors to whom the amount has been paid off along with the UTR details are:-

SR. NO.	Name of the Unsecured Creditor	Outstanding Amount as on 30th June 2024	UTR Details
1.	LinkedIn Singapore PTE Ltd.	Rs. 7,80,315/-	0131OTT2401392
2.	AV Gandhi and Co	Rs. 4500/-	AXISP00521327785
3.	Cyber Source International INC.	Rs. 35, 486/-	0131OTT2401355
4.	Dans Ventures Pvt. Ltd.	Rs. 29,700	AXISP00521327796
Total		Rs. 8,50,001/-	

Out of 12 unsecured creditors, 9 of them representing dues of Rs. 55,517/- have furnished their respective consents for dispensation of meetings of unsecured creditors and four of them have furnished their consent affidavit after filing of the petition (Annexure A-21). The three who could noy furnish their consent affidavits represent dues of Rs. 42,379/-. Further it is deposed that there has been transfer of shares by two nominee shareholders to new nominee shareholders of demerged company during 30.06.2024 and 23.08.2024.

19. An affidavit has been filed on behalf of demerged company for compliance of order dated 06.09.2024 of this Tribunal vide Dairy No. 02453/8 dated 23.09.2024 wherein it is submitted that amounts reflected in the Provisional Balance Sheet (at page no. 188 of Petition), under the categories of Other Payables, Lease Liabilities, Other Financial Liabilities and Other Current Liabilities, the same are either provisioned amounts or statutory payables or those payable to employees or those involved in the business as part of payment aggregator services and not as consideration or liability to vendor, and they do not require being mentioned in the List of Creditors (Annexure A-8). Further, the treatment of current and non-current liabilities as per provisional balance sheet of 30.06.2024 is submitted.

20. An affidavit has been filed on behalf of resulting company for compliance of order dated 06.09.2024 of this Tribunal vide Dairy No. 02453/9 dated 23.09.2024 wherein the breakup and explanation pertaining to amount appearing under various head in the Reconcilliation Statement of shareholders fund and current liabilities as per provisional balance sheet dated 30.06.2024 have been submitted.

21. An additional affidavit has been filed on behalf of resulting company vide Dairy No. 02453/10 dated 16.12.2024 wherein it is deposed that there has been transfer of shares by two nominee shareholders of the Resulting Company/Applicant Company No. 2 to two new nominee shareholders, between 30.06.2024 to 22.11.2024.

22. An additional affidavit has been filed on behalf of demerged company vide Dairy No. 02453/11 dated 16.12.2024 wherein it is deposed that there has been transfer of shares by two nominee shareholders to two new nominee shareholders of the Applicant Company No. 1, between 30.06.2024 to 22.11.2024.

23. An additional affidavit has been filed on behalf of demerged company vide Dairy No. 02453/12 dated 16.01.2025 wherein it is deposed that there has been transfer of shares by one nominee shareholder to new nominee shareholder.

24. An affidavit has been filed on behalf of demerged company vide Dairy No. 02453/13 dated 27.01.2025 wherein it is deposed that 4 creditors were paid earlier and remaining 12 creditors have been paid off or settlement of their dues have been made. The UTR details have been attached with the affidavit and are submitted as below:-

SR. NO.	Name of the Unsecured Creditor	Outstanding Amount as on 30th June 2024	Relevant Consent Annexure No.	UTR and Date of Payment
1.	MakeMy Trip India Private Limited	1,358/-	Annexure- A-8 (Colly)	AXISCN0866645400 and 26-Dec-2024
2.	Akash Talwar (Fortune Financial)	Rs. 21, 486/-	Annexure- A-8 (Colly)	AXISCN0780437158 and 17-Oct-2024
3.	Naveen Kumar Gupta	4,140/-	Annexure- A-8 (Colly)	AXISCN0866645403 and 26-Dec-2024
4.	Mahesh Prakash Naduvinamath (KP Infotech Systems)	Rs. 5,760/-	Annexure- A-8 (Colly)	AXISCN0866645399 and 26-Dec-2024
5.	Digital Gold India Private Limited	Rs. 1,196/-	Annexure- A-8 (Colly)	Subsequently settled.
6.	Casa2 Stays Private Limited	Rs. 780/-	Annexure-A-21 (Colly)	Subsequently settled.
7.	Pine Labs Private Limited	13,700/-	Annexure-A-21 (Colly)	N246243240580845 and 02-Sep-2024
8.	Vikas Kaushal Pincha	6,041/-	Annexure-A-21 (Colly)	AXISCN0735108792 and 05-Sep-2024
9.	Roxana Facilities	1,058/-	Annexure-A-21 (Colly)	AXISCN0735108782 and 05-Sep-2024
10.	Euronet Services Indian Pvt Limited	5,989/-	-	AXISP00536630610 and 05-Sep-2024
11.	IndiaIdeas.com Limited	27,750/-	-	AXISCN0763467378 and 03-Oct-2024
12.	Pothuri Gangadhar Naidu (PGR Construction)	8,640/-	-	AXISCN0894153143 and 21-Jan-2025

It is further submitted that the delays in payments to unsecured creditors was due to non-filing of the GST returns by respective creditors and payments have now been made to such unsecured creditors post filing of the GST returns as per trade practice (Annexure A-48). It is stated that all the payments to Unsecured Creditors stand duly paid.

25. A compliance affidavit has been filed on behalf of demerged company vide Dairy No. 02453/15 dated 26.03.2025 wherein the orders passed by the Hon'ble NCLT Delhi and Mumbai have been placed on record. Further, it is deposed that the Axis Bank Limited is holding 99.999% equity shares amounting to Rs 1,763,69,76,670/- in the Demerged Company/ Applicant Company No. 1 separately and have given its consent affidavit for the dispensation of the meeting of the equity shareholders through Power of Attorney holder Mr Subrat Mohanty via Affidavit dated 17.07.2024. The Power of Attorney bearing Serial No. 34329 dated 11.08.2023 is annexed as Annexure A-3. Additionally it is stated that Mr. Subrat Mohanty is also a Board Member of Axis Bank Ltd.

26. The Applicant Companies have furnished the details of the consent of the Equity Shareholders, Secured Creditors and Unsecured Creditors as follows:-

Company	Class of Shareholders		Class of Creditors			
	Equity Share-holders	Consent	Secured Creditors	Consent	Unsecured Creditor	Consent
Applicant Company 1	7	100%	1	100%	16	All the creditors have been duly paid
Applicant Company 2	7	100%	NIL	NA	NA	NIL

27. It is noted that the proposed scheme is a scheme of arrangement under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromis.es, Arrangements and Amalgamations) Rules, 2016 and provides for (i) arrangement between the applicant companies.

28. Since this is the First Motion Application seeking order for dispensation/ convening of the meetings of shareholders/ creditors, hence the analysis has been

limited to that extent only. Other issues including pending litigation would be analysed at the time of Second Motion Petition of the Applicant Companies.

29. Accordingly, the directions of this Bench in the present case are as under:

I. In relation to Applicant Company 1:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. The meeting of the sole Secured Creditor is dispensed with, as the consent of sole secured creditor have been submitted by way of affidavit;

c. The meetings of unsecured creditors of Applicant Company 1 are dispensed with, as all the creditors have been paid in full.

II. In relation to Applicant Company 2:

a. The meetings of the Equity Shareholders are dispensed with, keeping in view the shareholding pattern, financial structure of the company, and the fact that the consents of all shareholders have been submitted by way of affidavits;

b. Since there are "NIL" Secured and Unsecured Creditor in Applicant Company 2, therefore there is no requirement of any meeting of Secured and Unsecured Creditor.

30. Further, the Applicant Companies are directed to comply with conditions as specified in the letter bearing No. DoR: RAUG AUT No. 3518/24.01.002/2023-24 dated 21.09.2023 issued by Reserve Bank of India (RBI) as under:-

a) Freecharge shall only undertake PA and PG business strictly in line with the guidelines on 'Regulation of Payment Aggregators and Payment Gateways' issued by DPSS, as amended from time to time. Further, the bank or any of its other group entities (Subsidiaries, Joint Ventures and Associates) shall not undertake payment aggregation or payment gateway business.

b) The support subsidiary shall act as a BC and a technological service provider only to Axis bank and shall not render its services to any other entity / individual (including the group entities of the bank). Further, the scope of activities as a BC shall be in line with instructions applicable to BCs contained in Master Circular on Branch Authorisation dated July 01 ,2014, as amended from time to time.

c) The subsidiaries shall not undertake any activity other than those permitted above without the prior approval of the Reserve Bank.

d) The bank shall require the prior approval of the Reserve Bank for infusing any additional capital into its subsidiaries. Further, any change in the shareholding pattern of the subsidiaries also requires the prior approval of the Reserve Bank.

e) The bank shall ensure continuous compliance with the "Master Circular on Branch Authorisation" dated July 01 , 2014, "Master Direction on Outsourcing of Information Technology Services" dated April 10,2023, guidelines on "Managing Risks and Code of Conduct In Outsourcing of Financial Services by banks' dated November 03, 2006 and "Master Direction on Financial Service provided by Banks" dated May 26, 2016 along with other relevant instructions issued by the Reserve Bank from time to time.

31. In view of our above findings, the First Motion Application stands allowed by giving liberty to the Applicant Companies to file Second Motion Petition with a direction that the Applicant Companies shall make specific prayer for sending notices to the (a) Central Government through Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi, (b) concerned Registrar of Companies; (c) National Stock Exchange NSE (d) Bombay Stock Exchange (BSE) (e) Securities Exchange Board Of India (SEBI) (f) Reserve Bank of India (RBI) (g) Income Tax Authorities by disclosing the PAN numbers of all the Applicant Companies in the title of the Second Motion Petition.

Sd/-
(Shishir Agarwal)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

April 23, 2025
Tamanna